

Plaintiff's Reliance on the Complaint

Progressive objects to Crosley's reliance on factual allegations in Progressive's own complaint. Facts alleged in an operative pleading may be relied upon in summary judgment. (*Hutton v. Fidelity National Title Co.* (2013) 213 Cal.App.4th 486, 493.) The objection is therefore overruled.

5. 9:00 AM CASE NUMBER: C23-02289
CASE NAME: PROGRESSIVE WEST INSURANCE COMPANY VS. CRAIG CROSLY
***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**
FILED BY:

TENTATIVE RULING:

Progressive West Insurance Company's Motion for Leave to File a First Amended Complaint is **denied**.

Progressive seeks to amend the complaint to allege that cancellation was based not solely on Crosley's failure to provide a VIN, but on his failure to provide a VIN or other numeric identifying information necessary to verify or classify the Golf Cart, and that the policy renewal was effectively conditional pending receipt of that information.

Because the court grants summary judgment in Crosley's favor on Progressive's complaint, the motion for leave to amend is moot. The dispositive issue on summary judgment is whether Progressive had statutory authority to cancel the policy mid-term based on the asserted underwriting deficiency. As explained in the court's summary judgment ruling, mid-term cancellation is barred where the circumstances relied upon by the insurer existed prior to renewal and were known to the insurer at the time of renewal. Here, Progressive knew that lacked information needed to determine the vehicle's classification and assess the risk when it renewed Crosley's policy.

6. 9:00 AM CASE NUMBER: C23-02575
CASE NAME: MATTHEW ANDRADE VS. CHRIS PETLOCK
***HEARING ON MOTION FOR DISCOVERY MONETARY SANCTIONS FOR EGREGIOUS DISCOVERY MISCONDUCT FILED BY ANDRADE, MATTHEW / SEE MINUTES DATED 1/28/2026**
FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Matthew Andrade's ("Plaintiff" or "Andrade") Motion for Sanctions against Defendant Chris Petlock ("Defendant" or "Petlock") is **denied** as set forth herein.

Background

This is a continued hearing from January 28, 2026. The Court had ordered the parties to meet and confer to resolve Plaintiff's request for sanctions in the amount of \$46,343.15 for costs and fees incurred in taking the deposition of Defendant Chris Petlock, who was, at all relevant times, the Human Resources Manager for Defendant Pleasant Hill Recreation and Park District ("District"). The Court ordered counsel to submit declarations outlining their meet and confer efforts no later than

five days before the hearing. The Court reviewed the declarations by Counsel Serena Warner and Casey Dagget in making this ruling. The Court is satisfied that the parties complied with the Court's order to meet and confer. However, the matter of the sanctions are unresolved. For the reasons set forth below, Plaintiff's request for sanctions is denied.

In the underlying motion filed on October 17, 2026, Andrade sought sanctions in the amount of \$46,343.15 against Petlock and his counsel for discovery misconduct related to the deposition of Petlock. Andrade asserts that Petlock walked out of his second remote deposition after only thirty minutes. Petlock had previously appeared for his first remote deposition for seven hours without issue. Andrade further asserts that Petlock unreasonably refused to permit any continued remote depositions due to "anxiety," and instead required Plaintiff's counsel to take the deposition in person. At Petlock's in-person deposition, his counsel refused to produce any responsive documents. At the in-person deposition on August 6, 2025, counsel claims that Petlock "continuously cursed at me, shouting profanity at me a mere two feet away, and pounded his hand against the table on multiple occasions" fearing for his safety. Petlock's counsel coached Petlock, improperly instructed Petlock not to answer questions, and continuously made obstructive comments without stating an objection.

Andrade further claims that Petlock and his counsel admitted during the deposition proceedings that they had not even reviewed the document requests prior to appearing for the deposition. At the deposition, Petlock claims that he would be more comfortable having his deposition conducted remotely. Andrade attaches excerpts of the deposition testimony that was taken of Petlock, which this court has reviewed in part.

Petlock's opposition filed on January 7, 2026 disputes most of Andrade's claims. First, Plaintiff's original notice of deposition did not request production of documents. The amended notice of Petlock's deposition contained multiple requests for production of documents. However, counsel claims that the notices was not served twenty days prior to the deposition as required by the Discovery Act. Counsel disputes that she had improperly coached Petlock during his deposition. Furthermore, Petlock claims that he appeared for deposition on March 27, 2025 for a full day. Petlock claims that during the deposition, Counsel Daggett had asked antagonistic questions and had called him an inappropriate name. It caused him stress and heightened anxiety.

While the court reviewed the deposition testimony of certain contested issues, the court did not review the entirety of the 438 pages, only the highlighted portions submitted by counsel.

Analyses

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or

intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to compel or to limit discovery," or to fail to meet and confer to resolve discovery disputes informally. CCP Section 2023.030(a) provides: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or an attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."

Applied here, first, the Court does not find that Petlock had engaged in the misuse of the discovery process. He attended this first deposition remotely and ended his second remote deposition early for reasons related to his anxiety, which the Court finds to be justifiable. Petlock also submitted to his third in-person deposition on August 6, 2025, and appeared for his fourth deposition on August 7, 2025. He also appeared as his fifth deposition session on November 11, 2025. This record does not support that Petlock refused to submit to discovery. Moreover, in reviewing the objections and instructions made by Counsel Serena Warner, the Court does not find that Defendant's attorney made unmeritorious objections to questions posed by Counsel Daggett.

Next, the Court finds that Plaintiff's incurred fees and costs are excessive. Plaintiff's counsel claims that he incurred costs for travel in the amount 20 hours at \$175.00 per hour to drive up from Temecula to Concord California, and for the return drive. He also incurred costs to in the amount of 18 hours to print out, staple and organize exhibits for this deposition, producing thousands of pages of documents in exhibits to take to the deposition. He also billed these costs at \$175.00 per hour. He also purchased a scanner to scan those pages. It is unknown as to why Plaintiff's counsel did not use air travel, which may have been less expensive for his client, or use an office service to handle simple clericals tasks, such as copying, stapling and organizing exhibits, which may have yielded significant savings. Other costs borne by Plaintiff include travel time from the hotel to the deposition site, changing reservations, preparation time, and organizing exhibits. While these costs appear to be legitimate, they are normally incurred for depositions noticed by opposing party. The Court doesn't find good cause to award costs of preparing for a deposition to the opposing party and counsel.

Moreover, Andrade chose to retain counsel whose primary office is located in Temecula, California for

a case venued in Contra Costa County. The costs for counsel's 10 hour 900 mile road travel for an in-person deposition that he noticed should not be borne by Defendant, especially where a flight may have been less expensive for Plaintiff. The Court finds that the travel and administrative costs appear to be excessive, and also finds that the \$46,343.15 costs are, as a whole, avoidable had Plaintiff's counsel employed less expensive means for travel and for the production of documents. Moreover, fees normally incurred in preparing for depositions of an opposing party are not normally recoverable from the opposing party.

Ruling

Based on the foregoing, the Court **denies** Plaintiff's motion for sanctions. Each party to bear their own costs and fees for this motion and for the costs incurred in Plaintiff's deposition of Defendant Chris Petlock.

7. 9:00 AM CASE NUMBER: C24-01128
CASE NAME: ANTON GEYN VS. HERSH PATEL, MD
***HEARING ON MINOR'S COMPROMISE RE: OLGA GEYN**

FILED BY: GEYN, ANTON

TENTATIVE RULING:

Summary

Petitioner Anton Geyn's Petition for Approval of Compromise of Minor Olga Geyn's (DOB 10/15/2015) ("Minor") Claim filed on January 22, 2026, is **granted**, as set forth below. No appearance is required at the February 25, 2026 hearing.

Background

Petitioner Anton Geyn, parent and guardian *ad litem* for his daughter, Minor, filed the Petition through counsel Walkup Melodia, et al., to compromise the claim that Minor has against Hersh Patel M.D, John Muir Health and that occurred on or about February 1, 2023 in Walnut Creek, California. Minor's father, and Petitioner, Anton Geyn, alleges that a delayed diagnosis and treatment of his prostate cancer by over a year progressed to an incurable stage, which could have been cured had he been notified of elevated PSA test results by Dr. Patel and John Muir Health. The Defendants, Dr. Patel and John Muir, offered \$50,000 to compromise minor's claim. The deduction of \$17,335.24 pays for attorney's fees and costs incurred. The net settlement amount of \$32,664.46 will be placed into a single-payment deferred annuity account with Pacific Life Insurance Company for Minor as set forth in the Petition.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged with the Court on January 22, 2026. No appearances is required at the February 25, 2026 hearing.

8. 9:00 AM CASE NUMBER: C24-01216
CASE NAME: SAM CHELLAKAN VS. JOHN SATHRI